

Court No. - 29

Case :- WRIT - C No. - 30432 of 2019

Petitioner :- Bhopal Singh

Respondent :- State Of U.P. And Another

Counsel for Petitioner :- Sanjeet Kumar Mishra

Counsel for Respondent :- C.S.C.,Ajay Kumar

Hon'ble Pankaj Mithal,J.

Hon'ble Saral Srivastava,J.

Heard Sri Sanjeet Kumar Mishra, learned counsel for the petitioner and Sri Ajay Kumar, who has accepted notice on behalf of respondent no.2.

The petitioner is aggrieved by the demand notice dated 27.07.2019 whereby a sum of Rs.67,740/- is sought to be recovered as electricity dues from the petitioner including the cost of the notice.

Learned counsel for the petitioner submits that the petitioner accepts the liability to pay the aforesaid amount but submits that he is very poor person and not in a position to pay the said dues immediately and in lump-sum. He further submits that petitioner is ready and willing to pay the aforesaid amount in easy installments.

Clause 6.14 read with 4.39 of the U.P. Electricity Supply Code, 2005 makes a provision for the payment of the electricity dues in installments, provided an application to that effect is moved before the Executive Engineer or any other higher officer.

In view of the aforesaid facts and circumstances, looking to the financial condition of the petitioner, we dispose off the writ petition with the direction to the petitioner to pay a sum of Rs.17,740/- within a period of one month, on deposit of the said amount the electricity of the petitioner shall be restored, the petitioner shall pay the balance amount of Rs.50,000/- in five equal installments of Rs.10,000/- each payable in the months of November, 2019, December, 2019, January, 2020, February, 2020 and March, 2020.

In the event of default in payment of the above installments, the benefit of this order shall come to an end automatically.

The writ petition is ***disposed off.***

Order Date :- 26.9.2019

Sattyarth